

**Constitution of the Financial Management Association
at
The University of Texas at El Paso**

PREAMBLE

The Financial Management Association at The University of Texas at El Paso is intended to assist in the professional, educational, and social development of college students interested in finance, banking, and investments; provide an association for college students actively interested in these fields; and encourage interaction between business executives, faculty, and students of business and finance.

ARTICLE I – NAME

This student organization shall be known as the Financial Management Association at The University of Texas at El Paso, also operating as FMA at UTEP herein after referred to as the Chapter, created under the authority of the Financial Management Association. This chapter will be created in conformance with all college or university regulations in effect.

ARTICLE II – UNIVERSITY COMPLIANCE

Statement of University Compliance: This organization is a recognized student organization at The University of Texas at El Paso and adheres to all campus policies as set forth in the Handbook of Operating Procedures as outlined by the Office of the Vice President for Business Affairs and the Registered Student Organization Handbook as outlined by the Student Engagement Leadership Center at The University of Texas at El Paso.

ARTICLE III – UNIVERSITY POLICIES

Prohibition of Hazing Policy: Hazing in state educational institutions is prohibited by both state law (Sections 51.936, 37.151 (5) and (6), and 37.155, Texas Education Code) and by the Rules and Regulations of The Board of Regents of The University of Texas System, Series: 50101, Section 2.8). Individuals or organizations engaging in hazing could be subject to fines and charged with criminal offenses. Additionally, the law does not affect or in any way restrict the right of the University to enforce its own rules against hazing. For more information on UTEP's hazing policy, please visit UTEP's Handbook of Operating Procedures, Chapter 1, Section 1.2.3(g).

Non-Discrimination Policy: In accordance with the UTEP Student Organization Handbook, this organization may not deny membership on the basis of race, color, religion, national origin, gender, age, disability, citizenship, veteran status, sexual orientation, gender identity, or gender expression, except that a registered student organization created primarily for religious purposes may restrict the right to vote or hold office to persons who subscribe to the registered student organization's statement of faith; and a registered student organization may restrict membership based on the provisions of Title IX of the Education Amendments of 1972.

Title IX of the Education Amendment of 1972: Title IX of the Education Amendments of 1972 prohibits discrimination on the basis of sex in educational programs and activities at the university unless such programs and activities are specifically exempt from the law. The university is required to be in compliance with the provisions of Title IX. Therefore, compliance with Title IX is a condition to be a registered student organization at the university. Since passage of this law and the publication of the implementing regulations, the U. S. Department of Education Office of Civil Rights has evolved a rather clear set of criteria for determining when single sex organizations are exempt from the provisions of Title IX. The criteria are as follows: the organization must have tax-exempt status under Section 501 of the Internal Revenue Code; members must be limited to students, staff or faculty at The University of Texas at El Paso; the organization must be a "social fraternity" as defined by the Department of Education.

ARTICLE IV – MEMBERSHIP & ELIGIBILITY

Texas Board of Regent's Membership Statement: At the beginning of each academic year, each registered student or group must file with the appropriate institutional officer an affidavit stating that the organization or group does not, and will not during the year, have as a member any person who is not a

student or a member of the faculty or staff of the institution. Student organizations abide by this policy by fulfilling their Annual Requirements of submitting their registration with only UTEP-affiliated individuals.

Section 1. Qualifications

Membership in FMA at UTEP is open to students who seek to advance their understanding of finance, investments, and business leadership through hands-on engagement, collaboration, and service. All members must:

- A. Be currently enrolled at UTEP
- B. Maintain good academic and disciplinary standing in accordance with university policy.
- C. Possess a minimum cumulative GPA of 2.25 at the time of joining and throughout their membership.
- D. Uphold the mission, values, and professional standards of FMA at UTEP.

Members are expected to contribute to the organization's culture of professionalism and inclusion by attending meetings regularly, engaging respectfully with peers, and representing FMA positively in all university and community settings.

Section 2. Classes of Membership

Membership in FMA at UTEP shall consist of three distinct classes designed to foster lifelong engagement with the organization:

Active Members

Active Members are currently enrolled UTEP students who have completed the membership registration process and paid dues for the current academic term. Active Members:

- A. Hold full voting rights on all organizational matters.
- B. Are eligible to serve as officers or committee chairs.
- C. Must attend at least 50% of scheduled general meetings and participate in at least one FMA event per semester to maintain active status.

Associate Members

Associate Members are UTEP students, faculty, or staff who wish to participate in FMA programs but may not meet the participation criteria for Active status. Associate Members:

- A. May attend meetings and events.
- B. Do not hold voting rights or officer eligibility.
- C. Serve primarily in supportive or advisory capacities.

Alumni Members

Upon graduation, Active Members automatically transition to Alumni status. Alumni Members:

- A. Are encouraged to serve as mentors, guest speakers, or professional contacts.
- B. Do not possess voting rights but may be recognized as Honorary Members for outstanding service or continued engagement with FMA initiatives.

ARTICLE V – OFFICER ROLES

Section 1. Titles and Duties

The officers of the Financial Management Association at UTEP shall include the following positions, collectively known as the Executive Board:

- A. President
- B. Vice President of Internal Affairs
- C. Vice President of External Affairs
- D. Executive Assistant

- E. Marketing Director
- F. Recruitment Director
- G. Community Engagement Director
- H. Fundraising Director
- I. Secretary
- J. Treasurer

The Executive Board shall serve as the governing body of the organization, responsible for strategic planning, administrative oversight, and ensuring alignment with FMA's mission and university policy.

The President shall:

- A. Presides over all general and executive board meetings.
- B. Serves as the primary liaison between FMA, the faculty advisor, and the University.
- C. Ensures that all required organizational paperwork and annual registrations are submitted to maintain good standing.
- D. Represents FMA at Business College Council and other official university events.
- E. Promotes a culture of collaboration, inclusion, and professional development among members

The Vice-President of Internal Affairs shall:

- A. Assumes the President's duties in their absence.
- B. Collaborates with the Treasurer to prepare and manage the organization's budget.
- C. Oversees the submission of funding requests to SGA and other university committees.
- D. Maintains the FMA MineTracker profile and ensures all compliance documents are up to date.
- E. Provides operational support to the Marketing and Recruitment Directors.

The Vice -President of External Affairs shall:

- A. Coordinates professional development programming, including guest speakers, workshops, and company visits.
- B. Builds and sustains relationships with external partners, firms, and alumni.
- C. Assists in organizing corporate tours, panels, and networking sessions.
- D. Collaborates with the Fundraising and Community Engagement Directors to expand community and professional outreach.

Executive Assistant

- A. Serves as the official representative of FMA within the Business Student Council under the Woody L. Hunt College of Business.
- B. Provides administrative support to the President and assists in the coordination of meetings, events, and correspondence.
- C. Keeps records of Business Student Council updates and relays relevant information to the Executive Board.
- D. Is appointed and may be dismissed at the discretion of the President.
- E. Holds no voting rights on Executive Board matters unless specified by the President.

The Marketing Director shall:

- A. Develops and executes FMA's communication strategy across social media platforms.
- B. Designs and distributes promotional materials for events and meetings.
- C. Maintains consistent branding across FMA's digital presence.

- D. Notifies members of meetings, opportunities, and upcoming events.

The Recruitment Director shall:

- A. Leads recruitment campaigns through tabling, classroom visits, and campus outreach.
- B. Organizes information sessions and ensures smooth onboarding of new members.
- C. Represents FMA at Student Organization Fairs.
- D. Tracks recruitment progress and provides updates to the Executive Board.

The Community Engagement Director shall:

- A. Plans at least two community service events per semester in coordination with the VP of Internal Affairs.
- B. Coordinates social events that strengthen member relations and morale.
- C. Tracks and reports member participation in service initiatives.

The Fundraising Director shall:

- A. Organizes a minimum of four fundraising events per semester to support organizational goals.
- B. Submits required paperwork for event approval and adheres to UTEP fundraising policies.
- C. Tracks member involvement in fundraising activities and provides regular updates to the Secretary.

The Secretary shall:

- A. Maintains accurate meeting minutes and records of attendance.
- B. Manages official correspondence and prepares a monthly newsletter summarizing meetings and opportunities.
- C. Maintains an updated membership roster with contact information

The Treasurer shall:

- A. Maintains accurate financial records, including income, expenses, and receipts.
- B. Oversees the collection of membership dues and deposits all funds within 24 business hours of receipt.
- C. Prepares semester budgets and financial reports for review by the Executive Board.
- D. Ensures financial transparency and compliance with UTEP fiscal policies.

Section 2. Eligibility

All officers must be active members in good standing and meet the following criteria:

- A. Maintain at least a 2.25 cumulative GPA (in accordance with UTEP policy).
- B. Be enrolled in at least six (6) credit hours during their term.
- C. Have no active disciplinary sanctions or financial holds with the University.
- D. Remain active in the organization and fulfill all assigned responsibilities.

Failure to meet these eligibility requirements may result in removal from office by a vote from the Executive Board. Only active members can vote for new officers.

Section 3. Authority of the Executive Board

The Executive Board shall act as the decision-making body between general meetings, execute approved initiatives, and ensure operational continuity. The Board shall also have the authority to interpret this

Constitution and establish temporary committees as necessary.

Section 4. Voting Rights

All officers hold voting privileges on Executive Board decisions. The President shall only cast a vote in the event of a tie, except during officer elections.

Section 5. Re-Election

Officers may serve consecutive terms if re-elected through the organization's standard election procedures. No officer may self-appoint to a subsequent term.

Section 6. Removal of Officers

An officer may be removed for reasons including, but not limited to:

- A. Failure to perform assigned duties.
- B. Non-participation or unexcused absences from three or more meetings.
- C. Conduct unbecoming of an officer or in violation of university policy.

Removal Process:

- 1) The officer in question shall receive written notice from the secretary at least 72 hours prior to the scheduled vote. In the case, that the secretary is the position of removal, Vice President of Internal Affairs shall send the notice.
- 2) The officer shall have the opportunity to present their defense before the membership.
- 3) A two-thirds (2/3) affirmative vote of active members present shall be required for removal.

Section 7: Resignation

An officer wishing to resign must submit written notice to the President and faculty advisor at least two (2) days in advance. Before their final day, they must transfer all organizational materials and brief their successor on current projects and duties.

Section 8: Filling Vacancies

If any officer other than the President resigns or is removed, the Executive Board shall determine by majority vote whether to fill the vacancy.

- If the position is to be filled, nominations and elections shall be held at the next general meeting.
- If the President resigns or is removed, the Vice President of Internal Affairs shall assume the presidency upon majority confirmation by the remaining officers. If not confirmed, a special election will be held.

ARTICLE VI – MEETINGS

Section 1. General Meetings

FMA at UTEP shall hold weekly general meetings throughout the fall and spring semesters to promote engagement, professional development, and organizational transparency.

The Executive Board shall determine the day and location of meetings each semester based on member availability and university scheduling policies. Notice of meeting times and any changes shall be communicated to members with reasonable advance notice through official communication channels (e.g., email, social media, or MineTracker).

Section 2. Executive Board Meetings

The Executive Board shall meet regularly to plan events, review progress, and coordinate organizational operations. These meetings shall occur as needed to ensure the success and continuity of FMA programs.

Special or emergency meetings may be called by the President or by a majority of the Executive Board.

Section 3. Communication and Records

The Secretary shall distribute meeting reminders and maintain minutes for both general and Executive Board meetings. Meeting minutes shall be shared electronically with all members and archived for continuity. In the Secretary's absence, another designated officer shall assume this responsibility.

Section 4. Quorum

A quorum for voting purposes shall consist of a majority (50% + 1) of active members present at a duly called general meeting. Decisions shall be made by a simple majority vote unless otherwise specified in this Constitution.

ARTICLE VII - UNIVERSITY ADVISOR(S)

Section 1. Advisor Selection

FMA shall have at least one and no more than two university advisors per academic year. Advisors shall be selected by a majority vote of the Executive Board and confirmed by a simple majority of active members. In the event that two advisors are selected, both shall share equal advisory authority and responsibilities.

Section 2. Responsibilities

The university advisor serves as a mentor, resource, and liaison between the organization and the University. Their role is primarily advisory, providing guidance and continuity while empowering student officers to lead independently. Advisor responsibilities include, but are not limited to:

- A. Assisting officers in planning programs and ensuring alignment with university policies and organizational goals.
- B. Offering feedback on leadership transitions, event planning, and chapter development.
- C. Providing institutional knowledge to maintain continuity between academic years.
- D. Approving travel or high-risk activities when required by the Woody L. Hunt College of Business or the University.
- E. Ensuring that the organization remains in compliance with university and state regulations.
- F. Serving as the official point of contact for administrative matters related to FMA.
- G. (Recommended) Attending at least one general meeting or organizational event per semester to stay informed of FMA's activities.

Section 3. Eligibility

Advisors must be current UTEP faculty or staff members employed at least part-time in a benefits-eligible position. All advisors are required to complete the Registered Student Organization (RSO) State-Mandated Risk Management Training annually, as directed by the Student Engagement & Leadership Center (SELC).

Section 4: Term & Continuity

Advisors shall serve for an indefinite term so long as they remain employed by UTEP and willing to serve in the role. Advisors may be reappointed or replaced at the discretion of the organization through the selection process described in Section 1.

The Executive Board is encouraged to maintain open communication with the advisor regarding leadership transitions to ensure organizational continuity.

Section 5: Removal and Replacement

An advisor may be removed from their position by a majority vote of active members following written notice at least seventy-two (72) hours prior to the vote. If they desire, the advisor can be given the opportunity to address the organization before any vote takes place.

In the event of removal or resignation, a new advisor shall be elected within fifteen (15) school days, and updated advisor information must be reported to the Student Engagement & Leadership Center (SELC).

ARTICLE VIII – FINANCES

Section 1. Membership Dues

Membership dues shall be determined each academic year at the discretion of the President, in consultation with the Treasurer and Executive Board. Any change to the membership fee must be reasonable, directly correlated to the organization's operational expenses, and communicated to all members prior to the start of the semester.

All members, including officers, are required to pay membership dues to remain in good standing. Advisors are exempt from this requirement. Proof of payment may be requested by the Executive Board at any time.

Section 2. Budget Development and Approval

The Treasurer, in collaboration with the Vice President of Internal Affairs, shall prepare a detailed semester budget outlining anticipated income, expenditures, and savings goals. The Executive Board shall review and approve the proposed budget by a majority vote within the first month of each semester.

The budget may be amended mid-semester with Executive Board approval if new initiatives, funding opportunities, or unexpected expenses arise.

Section 3. Financial Authority

For the protection of the organization and its officers, all monetary transactions shall require authorization from two signers on the organization's account. Only the President, Treasurer, and Faculty Advisor may serve as authorized signers.

Organizational funds may be used only for legitimate activities and purchases that align with the mission and goals of the Financial Management Association at UTEP, and must comply with all university, local, state, and federal regulations. All funds collected shall be deposited within 24 business hours.

Section 4. Officer Transition

Following elections, the outgoing Treasurer and President shall work jointly with the incoming officers to transfer all financial documents, account information, and transaction records.

The outgoing Treasurer must prepare a Final Financial Report summarizing the organization's account balance, income, and expenses for the year. This report shall be shared with the Executive Board during the transition meeting.

Section 5: Transfer of Funds upon Inactivity

If FMA becomes inactive or loses its registration status with the University, all remaining funds shall be dispersed to the Woody L. Hunt College of Business Fund to support student development and professional initiatives.

If this option is not feasible, all remaining funds will be transferred to the Student Organization Advancement Fund, managed by the Student Engagement & Leadership Center (SELC).

ARTICLE IX – ELECTIONS

Section 1. Election of Officers

Elections for officers shall be conducted by the Executive Board during the spring semester of each academic year. The election process shall be announced to all active members at least one (1) week in advance of the voting period.

Voting shall be held digitally, either through a Microsoft Form or the MineTracker platform, as determined by the Executive Board. A simple majority vote of active members who cast ballots shall be required for the election of each officer.

In the event of a vacancy during the academic year, the Executive Board may hold a special election following the same process, or the President may appoint a temporary replacement with the approval of a majority of the Executive Board.

Selection 2. Voting

Voting privileges shall be limited to active members in good standing. Each active member shall have one vote per office. All votes shall be cast confidentially through approved digital platforms to ensure fairness and accessibility. A simple majority of votes shall determine the winner.

Selection 3. Length of Office

All officers shall serve a one (1) academic year term and may run for re-election for subsequent terms.

Section 4. Results of the Election

The results of the election will be tabulated and announced by the last meeting of the semester.

Section 5. Assumption of Office

Elected officers shall officially assume their positions after the transition meeting, which will occur at the conclusion of the semester in which they are elected. During this meeting, outgoing officers shall transfer all relevant materials, responsibilities, and information necessary to ensure organizational continuity.

ARTICLE X – AMENDMENTS

Section 1. Procedure for Constitutional Amendments

Proposed amendments to this Constitution must be submitted in writing to the President. Any active member of the Financial Management Association at UTEP may propose an amendment.

The President shall review and present the proposed amendment to the Executive Board for preliminary discussion before it is brought to the general membership. The proposed amendment must then be presented during a regular or special general meeting, where the author or Executive Board shall provide a clear explanation and rationale for the change.

The proposed amendment shall be voted upon no earlier than one (1) week after its presentation to allow sufficient time for review by all members. Adoption of an amendment shall require a two-thirds (2/3) affirmative vote of active members present.

Section 2. Constitution Updates

Once approved, all amendments must be uploaded to the Documents section of the organization's MineTracker page within fourteen (14) days of member approval. Each updated version of the Constitution should include the date of ratification and a summary of the amendment for record-keeping and transparency.

ARTICLE XI – RATIFICATIONS

This Constitution of the Financial Management Association at The University of Texas at El Paso was reviewed and approved by a majority vote of active members present at a duly called general meeting of the organization. The Constitution shall become effective immediately upon approval by the membership.

Date of Ratification: _____